

Rahimuddin Khan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 April 2018 · WRIT - C No. 55809 of 2017 · **Writ consigned to records; petitioner relegated to respondent no. 3 under the Act and Supply Code.**

HEADNOTE

The Allahabad High Court declined to entertain a writ arising from an alleged electricity theft raid. Counsel for the Electricity Department produced a provisional assessment notice in court. The petition disclosed neither any FIR under section 135 of the Electricity Act, 2003 nor the assessment particulars, and the record did not show that the petitioner held a connection on the raid date. Without prejudice, the Court relegated the petitioner to respondent no. 3, who was to furnish details of the assessment and any FIR and proceed in accordance with the Act and the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Rahimuddin Khan filed Writ-C No. 55809 of 2017 against the State of U.P. and electricity authorities. After adjournments, during which the Court stayed coercive action, counsel for the Electricity Department produced in court a photostat of a provisional assessment notice. The petition did not set out any FIR or assessment particulars. Nothing on the record showed that the petitioner held an electricity connection on the date of the raid. The Department alleged theft of electricity.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

writ-not-entertained-for-undisclosed-theft-assessment

HOLDING

A writ petition arising from an alleged electricity theft raid will not be entertained where the petitioner has not disclosed the FIR, if any, under section 135 or the provisional assessment, and the record does not show a connection on the raid date. The consumer may obtain those details from the assessing officer and pursue remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; the officer is to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION AND OF THE PROVISIONAL ASSESSMENT

The Court did not examine whether a raid, assessment or FIR was valid; it only declined to entertain the writ. ¶ 1

NOT DECIDED — WHETHER AN FIR UNDER SECTION 135 HAD BEEN LODGED, OR WHETHER THE PETITIONER HELD A CONNECTION ON THE RAID DATE

¶ 1

